

United States District Court for the Northern District of West Virginia

Asterglen Freight Software, Inc. v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC

Asterglen Reply Supporting Rule 54(b) Motion

Civil Action No. SYN-NDWV-25-CV-0618 District ECF No. 59 — Filed February 2, 2026

Asterglen Freight Software, Inc. submits this reply because Defendants' opposition treats factual overlap as dispositive and understates the completed character of Count I. The January 12 order dismissed the entire contract claim against Copper with prejudice. No element of that claim remains for trial. Count II and Copper's amended counterclaim have different parties, elements, and requested relief even though all three claims arose during the BeaconRoute deployment.

Asterglen does not contend that the Court may direct judgment merely because Count I ended. Its motion asks for the separate, express determination required by Rule 54(b) and supplies reasons grounded in this record. The Court can assess the relationship of the claims, potential repeated review, the counterclaim, and the equities while still concluding that the defined contract ruling is suitable for immediate review.

Defendants also conflate a possible offset with liability. Their \$120,000 counterclaim does not decide whether Asterglen could terminate on July 22 without providing Section 9.2's written notice and fifteen-calendar-day cure opportunity. Any proven counterclaim amount can be accounted for after the legal status of Count I is known. Asterglen therefore asks the Court to grant the motion, state the required determination expressly, and limit the judgment to Count I.

I. The claims are distinct enough for confined review

Count I asks whether Copper breached the Pilot License and caused \$480,000 in claimed loss. Count II asks whether Meridian intentionally interfered with the Asterglen-Copper relationship and caused \$360,000 in claimed loss. The amended counterclaim asks whether Asterglen owes Copper \$120,000 under Copper's performance, cure, and offset theory. Proof of one claim does not automatically establish another, and each requested judgment runs between a different alignment of parties.

The overlapping chronology does not require the court of appeals to decide the pending claims. Review of Count I can focus on the April 15 license, Asterglen's June 10 written conditions, the July 22 termination and demand, and the evidence relevant to cure feasibility. The appellate court need not decide Meridian's intent or causation, and it need not liquidate Copper's counterclaim. The partial judgment can state those boundaries plainly.

Nor is repeated appellate review inevitable. A later appeal may concern trial evidence and rulings unique to interference or the counterclaim. The first appeal would concern the summary-judgment decision on the contractual condition. The mere possibility that both appeals would recite the deployment history does not mean they would present the same legal question. If shared background alone defeated certification, Rule 54(b) would rarely apply in a multi-claim commercial action. The proper inquiry is practical and case-specific, and this case permits a disciplined division between the adjudicated contract claim and the claims awaiting resolution.

II. The counterclaim and equities do not require delay

Copper's counterclaim may affect the parties' eventual net recovery, but its existence does not make Count I unfinished. Asterglen disputes the counterclaim and no amount has been adjudicated. If Copper later establishes some or all of \$120,000, the Court can address setoff after the appellate disposition. Conversely, if Count I remains dismissed, the counterclaim will proceed on its own proof. Immediate review therefore clarifies rather than confuses the principal contractual relationship.

The equities extend beyond ordinary dissatisfaction with an adverse ruling. Count I has been dismissed with prejudice, while the parties continue litigating claims whose strategy and potential resolution may depend on whether the Pilot License permitted Copper's immediate action. A definitive answer could inform further proceedings and settlement positions. Asterglen accepts that certification does not create an automatic stay and does not ask this motion to halt Count II or the counterclaim.

Defendants' preference for one appeal deserves weight, but it is not conclusive. Rule 54(b) exists for a completed individual claim when administration and fairness support review before the rest of the action ends. The requested express finding, a precisely limited judgment, and continued district control over the remaining claims address the principal fragmentation concerns. Asterglen asks the Court to exercise its discretion on those defined terms rather than adopt a categorical rule based on a common factual setting.

III. Requested disposition

The Court should grant Asterglen's motion and enter an order that does three things. First, it should identify the January 12 dismissal with prejudice as an ultimate disposition of Count I. Second, it should determine expressly that there is no just reason for delay after considering the relationship of the claims, the possible setoff, repeated-review risk, and the equities. Third, it should direct the Clerk to enter a separate judgment limited to Count I.

That disposition would leave Count II against Meridian and Copper's amended counterclaim against Asterglen pending. It would not resolve Meridian's intent, Copper's claimed \$120,000, damages on any surviving claim, or any request for a stay. It also would not enlarge the summary-judgment ruling beyond the contract count actually decided.

Asterglen respectfully requests that relief for the reasons stated in its opening memorandum and this reply. A clear order will give the parties and the court of appeals an exact account of the Court's decision and the claims that remain.

Filed for Asterglen Freight Software, Inc. by its undersigned counsel.

I certify that on February 2, 2026, this reply was filed through the Court's electronic filing system and served electronically on counsel of record for both Defendants. This reply relies on the existing motion record and includes no new exhibit. All parties received notice at the addresses maintained for this action.